

IN THE SENATE

SENATE BILL NO. 1443

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO THE CONDITIONAL RELEASE AND DEPORTATION OF ILLEGAL ALIEN OFFENDERS; AMENDING CHAPTER 1, TITLE 20, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 20-112, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE CONDITIONAL RELEASE AND DEPORTATION OF ILLEGAL ALIEN OFFENDERS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 1, Title 20, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 20-112, Idaho Code, and to read as follows:

20-112. CONDITIONAL RELEASE AND DEPORTATION OF ILLEGAL ALIEN OFFENDERS. (1) As used in this section, "illegal alien offender" or "offender" means a person as defined in section 18-9002(6), Idaho Code, sentenced to the custody of the state board of correction and confined in a penal or correctional institution or county jail for a definite term.

(2) Notwithstanding any other provision of law to the contrary, the director of the department of correction may place any illegal alien offender on conditional release status and release the offender to immigration and customs enforcement for deportation at any time prior to the expiration of the offender's term of confinement.

(3) An offender confined for a life sentence or under a sentence of death shall not be eligible for conditional release pursuant to the provisions of this section.

(4) Prior to a conditional release pursuant to the provisions of this section, the offender must be subject to a final order of deportation or exclusion, as found or determined by the United States attorney general.

(5) No offender may be released pursuant to the provisions of this section unless the director has reached an agreement with immigration and customs enforcement that the offender will be detained in total confinement at a facility operated by or on behalf of immigration and customs enforcement pending the offender's return to the country of origin or other location designated in the final deportation or exclusion order.

(6) An offender's conditional release status shall continue until the expiration of the statutory maximum sentence provided by law for the crime or crimes of which the offender was convicted. If the offender has multiple current convictions, the statutory maximum sentence allowed by law for each crime shall run concurrently.

(7) The unserved portion of the term of confinement of any offender released pursuant to the provisions of this section shall be tolled at the time the offender is released to immigration and customs enforcement for deportation. Upon the release of an offender to immigration and customs enforce-

1 ment, the department shall issue a warrant for the offender's arrest within
2 the United States. Such warrant shall remain in effect indefinitely.

3 (8) Upon a subsequent arrest of an offender, the department may seek ex-
4 tradition as necessary and the offender may be returned to the department for
5 completion of the unserved portion of the offender's term of total confine-
6 ment. If returned, the offender shall also be required to fully comply with
7 all the terms and conditions of the sentence.

8 (9) Offenders released pursuant to the provisions of this section shall
9 not be relieved of their obligation to pay restitution or other legal finan-
10 cial obligations ordered by the sentencing court.

11 (10) The department shall provide prior written notice to the of-
12 fender's victims prior to the conditional release of the offender pursuant
13 to the provisions of this section.

14 (11) An offender released pursuant to the provisions of this section who
15 returns to the United States prior to the completion of such offender's con-
16 ditional release commits a violation of section 18-9004, Idaho Code.

17 (12) Any offender released pursuant to the provisions of this section
18 who returns illegally to the United States may not thereafter be released
19 again pursuant to the provisions of this section.

20 (13) The director shall be authorized to take all reasonable actions to
21 implement the provisions of this section and shall assist federal authori-
22 ties in prosecuting offenders who illegally reenter the United States and
23 enter the state of Idaho.

24 (14) The provisions of this section shall apply to offenders confined in
25 a penal or correctional institution or county jail on and after July 1, 2026.

26 SECTION 2. An emergency existing therefor, which emergency is hereby
27 declared to exist, this act shall be in full force and effect on and after
28 July 1, 2026.